of data-driven policy fortifies the imperative for a nationwide caste census," says political activist Yogendra Yadav. There are other caveats too. States cannot earmark 100 per cent reservation for a subclass to the exclusion of other castes in the SC list. Their decision on subclassification will be subject to judicial review, the court asserted.

HISTORICAL CONTEXT

The origins of this judgment date back to 1975, when the Punjab government issued a notification splitting its 25 per cent SC reservation into two parts: half for Balmikis (Valmikis) and Mazhabi Sikhs, and the other half for other SC groups. This arrangement lasted for 31 years until the Punjab and Haryana High Court struck down the notification on July 25, 2006, citing the Supreme Court's 2004 ruling that invalidated similar subclassification laws. The high court also nullified Haryana's 1994 notification that had a similar classification to prevent the Chamar community from monopolising reservation benefits.

Following the high court ruling, Punjab enacted the Punjab Scheduled Caste and Backward Classes (Reservation in Services) Act, 2006. Section 4(5) of this Act mandated that half of the SC-reserved seats be offered first to Balmikis and Mazhabi Sikhs before other SC groups. However, in 2010, the Punjab and Haryana High Court struck down this provision too. The Punjab government then moved the Supreme Court, leading to the current judgment.

CHANGING QUOTA PIE

Acknowledging the diversity within the SCs, the judgment facilitates a more nuanced and equitable distribution of reservation benefits, particularly in states with significant SC and ST populations (*see graphic*). States like Punjab, Andhra Pradesh, Tamil Nadu and Haryana, which have previously attempted subclassifications, now have judicial backing to refine their affirmative action policies.

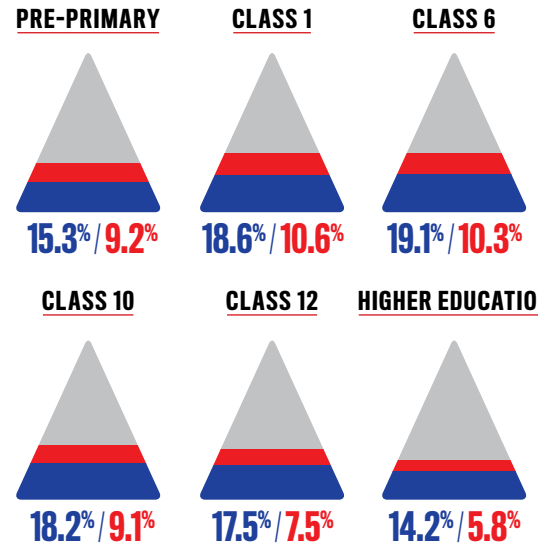
The 2006 Punjab Act, which designates reservations within the SC category for two specific communities, now gains legitimacy. Similarly, Andhra Pradesh may revive a version of the annulled Andhra Pradesh Scheduled Castes (Rationalisation of Reservations) Act, 2000, originally designed to address the grievances of the Madiga community, a significant group in Andhra, Telangana and Karnataka, which felt marginalised by dominant SC communities like the Malas. This law aimed to subdivide the SC quota into four distinct categories.

Post-verdict, Andhra Pradesh chief minister N. Chandrababu Naidu emphasised the TDP's role in initiating this effort through the Justice Ramachandra Raju Commission on SC subcategorisation in 1996. In Telangana, Revanth Reddy announced a separate quota for the Madiga community in government jobs. In Tamil Nadu, where Madigas are known as Arunthathiyar, the Tamil Nadu Arunthathiyars (Special Reservation) Act, 2009, which allocates specific reservations within the 18 per cent SC quota for the Arunthathiyar community, now faces no legal challenges. In 2020, Haryana

THE CURRENT STATE OF SCs/ STs

EDUCATION

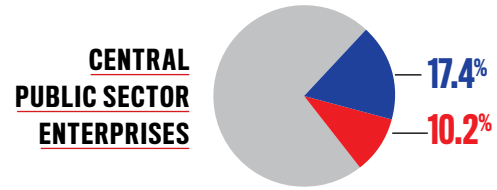
Enrolment rates of SC/ ST students in school and higher education



Source: UDISE+ and AISHE 2020-21

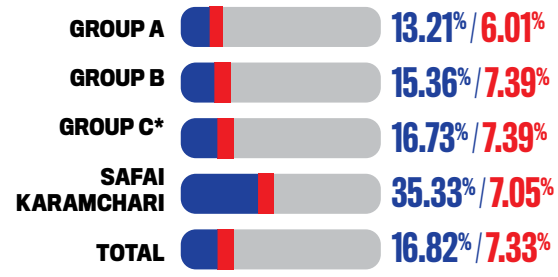
EMPLOYMENT

SC/ ST representation in central public sector enterprises and central government services



Source: Public Enterprises Survey, 2022

CENTRAL GOVERNMENT SERVICES



**excluding safai karamchari*
Source: Annual report by Department of Personnel & Training, 2022-23

SC ST; Rest: Other groups